

25STCV36891 25STCV36891

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Plaintiff alleges that she was subjected

to discrimination and failure to accommodate after she took pregnancy leave.

Defendants Amazon.com Services LLC and Jessica Wu demur

to the First Amended Complaint.

TENTATIVE RULING

Defendants Amazon.com Services LLC and Jessica

Wu's demurrer to the First Amended Complaint is OVERRULED as to the second cause of action and SUSTAINED without leave to amend as to the eighth cause of action.

Defendants are to answer the remaining allegations

of the First Amended Complaint within 10 days.

ANALYSIS

Demurrer

Meet and

Confer

The Declaration of James E.S. Talt reflects

that Defendant's counsel satisfied the meet and confer requirement set forth in

Code Civ. Proc. § 430.41.

Discussion

The Court has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendants Amazon.com Services LLC and Jessica Wu demur to the First Amended Complaint as follows:

1. Second Cause of Action (Violation of Pregnant Workers Fairness Act (PWFA).)

Defendants argue that Plaintiff does not allege that she made Amazon aware of her limitations and their relation to pregnancy and childbirth.

The second cause of action is based upon the following allegations:

12. Defendants' adverse employment actions and behavior:

...

d. During her pregnancy from April through June 2024, Ms. Kowalski was 43 years old and had a medically confirmed high-risk pregnancy. Amazon required her to work in the office three days per week while other team members worked remotely. When Ms. Kowalski learned that a QA developer on another team came to the office only every other week, she was required to negotiate a reduced schedule herself. Amazon knew of her high-risk status and of the remote work arrangements already extended to other employees when it imposed the three-day requirement on her.

...

u. As a direct and proximate result of the conditions of her return from maternity leave, Ms. Kowalski developed Major Depressive Disorder, Generalized Anxiety Disorder, and Social Phobia. These conditions are causally related to childbirth and the circumstances of her return from protected leave and constitute known limitations related to childbirth and related medical conditions within the meaning of the Pregnant Workers Fairness Act. Her treating psychologist, Dr. Jennifer Scharding, and treating psychiatrist, Dr. Oluwatobiloba Odunsi, diagnosed and documented

these conditions. Ms. Kowalski reported to Dr. Odunsi in September 2025 that she had experienced none of these conditions before her maternity leave. Dr. Scharding concluded that Ms. Kowalski was unable to return to her former capacity as a copywriter and recommended permanent remote work as a necessary accommodation.

v. Ms.

Kowalski submitted a formal workplace accommodation request for remote work, supported by medical documentation from Dr. Scharding. On July 23, 2025, Amazon's Disability and Leave Services acknowledged receipt of the request under Case No. 11138837 and confirmed its understanding of her limitations: environmental sensitivity, distress caused by social settings experienced as aggressive, and social anxiety capable of triggering panic attacks. Amazon's acknowledgment also confirmed that her healthcare provider had recommended remote work to address these limitations.

w. On July 31, 2025, during a meeting attended by both Wu and Partridge, Ms. Kowalski was told she was expected to continue working in the office notwithstanding her medical provider's recommendation for permanent remote work. On August 4, 2025, Amazon formally denied the request in writing. Amazon denied the request again on October 2, 2025. Other members of the Ring creative team worked remotely. Amazon did not engage in a meaningful exploration of alternative accommodations prior to these denials.

...

...

32. At all relevant times, Defendants were covered entities within the meaning of the Pregnant Workers Fairness Act (PWFA), 42 U.S.C. § 2000gg et seq., as Defendants employed at least 15 employees.

...

34. Plaintiff had known limitations related to pregnancy, childbirth, and related medical conditions. During her pregnancy, Plaintiff had a high-risk pregnancy requiring reduced office attendance. After her return from maternity leave, Plaintiff developed severe psychological conditions including Major Depressive Disorder, Generalized Anxiety Disorder, and Social Phobia caused by Defendants' hostile work environment. These psychological conditions constituted known limitations related to childbirth and related medical conditions under the PWFA.

35. Defendants knew of Plaintiff's pregnancy-related and childbirth-related limitations. Defendants required Plaintiff to work in office during her high-risk pregnancy while granting remote work arrangements to other team members. When Plaintiff submitted a formal accommodation request supported by medical documentation requesting permanent remote work, Defendants denied the request despite the accommodation being reasonable, medically necessary, and feasible.

36. Defendants violated the PWFA by failing to provide reasonable accommodations for Plaintiff's known limitations related to pregnancy, childbirth, and related medical conditions.

(1AC, ¶¶
12(d), (u) – (w), 32, 34, 35 [bold emphasis added].)

42 U.S.C. § 2000gg-1 provides:

It shall be an unlawful employment practice for a covered entity to—

(1) not make reasonable accommodations to the known limitations related to the pregnancy, childbirth, or related medical conditions of a qualified employee, unless such covered entity can demonstrate that the accommodation would impose an undue hardship on the operation of the business of such covered entity;

(2) require a qualified employee affected by pregnancy, childbirth, or related medical conditions to accept an accommodation other than any reasonable accommodation arrived at through the interactive process referred to in section 102(7) [42 U.S.C. § 2000gg(7)];

(42 U.S.C.
§ 2000gg-1(1) & (2)[bold emphasis and underlining added].)

Here, Plaintiff has sufficiently pled in ¶¶ 35, 36 of the 1AC that she requested remote work arrangements due to pregnancy-related complications, which accommodation was denied. Whether or not her medical conditions were in fact related to or caused by her pregnancy is a question of fact beyond the scope of this demurrer.

“The sole issue raised by a general demurrer is whether the facts

pleaded state a valid cause of action, not whether they are true. No matter how unlikely or improbable, plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (Citation omitted.) Furthermore, plaintiff's possible inability or difficulty in proving the allegations of the complaint is of no concern. (Citation omitted.)" (Kerivan v. Title Ins. & Trust Co. (1983) 147 Cal.App.3d 225, 229.)

This cause of action is sufficiently
pled.

The demurrer to the second cause of
action is OVERRULED.

2. Eighth Cause of Action (Intentional Infliction of Emotional Distress).

This cause of action is only asserted
against Defendant Wu.

Defendants argue that Wu's alleged conduct was not extreme
or outrageous.

In order to be actionable as a claim for intentional infliction
of emotional distress, a defendant's conduct must be extreme and outrageous. (Citations
omitted.) The defendant must act with the intent to cause emotional distress or
with reckless disregard of the likelihood of such an outcome. (Citation omitted.)
Further, the conduct must be the actual and proximate cause of the plaintiff suffering
severe emotional distress. (Citation omitted.) To be "outrageous," the conduct must
go "beyond all bounds of decency; ordinary rude or insulting behavior is not
enough" (Citation omitted.)

...

Appellant also argues the evidence underlying her retaliation
claim is sufficient to meet the conduct element of her intentional infliction of
emotional distress claim. As we shall discuss, we conclude there was substantial
evidence to support the jury's finding that respondents engaged in unlawful retaliation.
Nevertheless, appellant's argument fails as to the intentional infliction claim.
A "series of subtle, yet damaging, injuries" is sufficient to constitute retaliation;
however, it does not necessarily rise to the "extreme and outrageous" standard required

for an intentional infliction of emotional distress claim. (Citations omitted.)

Although appellant claimed she was faced with continued isolation and ostracism, we conclude respondents' conduct did not go "beyond all bounds of decency."
(Citation omitted.)

We find no error in the trial court's grant of summary adjudication on the sexual harassment and intentional infliction of emotional distress claims in favor of respondents.

(McCoy v. Pacific Maritime Assn. (2013) 216 Cal.App.4th 283, 294-95 [bold emphasis added].)

An essential element of such a claim is a pleading of outrageous conduct beyond the bounds of human decency. (Citations omitted.) Managing personnel is not outrageous conduct beyond the bounds of human decency, but rather conduct essential to the welfare and prosperity of society. A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged. If personnel management decisions are improperly motivated, the remedy is a suit against the employer for discrimination.

(Janken v. GM Hughes Electronics (1996) 46 Cal.App.4th 55, 80 [bold emphasis added].)

Here, the allegations in the first amended complaint consist of defendants misleading plaintiffs into believing they would be compensated in an amount 781] that would allow them to retire if they continued to work for West Coast until the company was sold. While the allegations of defendants' conduct, if true, demonstrate a callous disregard for plaintiffs' professional and personal well-being, the alleged conduct as stated is not extreme or outrageous to support a cause of action for intentional infliction of emotional distress.

(Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 780-81 [bold emphasis added].)

Ordinarily mere insulting language, without more, does not constitute outrageous conduct. The Restatement view is that liability "does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities There is no occasion for the law to intervene . . . where some one's feelings

are hurt.” (Citation omitted.) Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress. (Citations omitted.)

(Cole v. Fair Oaks

Fire Protection Dist. (1987) 43 Cal.3d 148, 155 [bold emphasis added].)

Here, Plaintiff alleges the following conduct against Defendant Wu:

h. Upon her return [from pregnancy leave], Wu reassigned Ms. Kowalski from her Subscriptions Copywriter role, which had been created specifically to lead a major rebrand project, to general copywriting work on smaller international campaigns. Major subscriptions projects were withheld. This reassignment stripped Ms. Kowalski of the core responsibilities for which she had been hired months earlier. It occurred simultaneously with the job posting listing Lara’s Austin location as the hire site.

i. On September 23, 2024, twenty days after her return, Wu publicly reprimanded Ms. Kowalski in a Slack channel visible to her teammates for a spelling error in the Live Oak billing copy deck. The project had been handed off before Ms. Kowalski’s maternity leave, had never been reassigned to her upon her return, and Wu had told Ms. Kowalski on September 3 to not worry about it anymore. Wu was aware of all three of these facts when she raised the issue publicly rather than in a private conversation.

j. After her return, Ms. Kowalski received significantly fewer work assignments than before her leave, limited to smaller international campaigns. On October 28, 2024, she proactively pitched a College Move-In Day campaign concept to manager Dan Smith and drafted a complete proposal. Management found the concept strong enough to execute. It launched on July 3, 2025, rebranded as “Back to School,” with Kyle Garcia assigned as copywriter. Project Manager Morgan Dietrich later confirmed to Ms. Kowalski that the campaign “was in our pipeline from that idea.” Ms. Kowalski was given no role in executing the campaign she originated.

k. On October 23, 2024, Wu sent Ms. Kowalski a written message criticizing her Buen Fin campaign work and faulting her for insufficient ownership and rigor, qualities Ms. Kowalski had demonstrated successfully as a contractor for nearly two years. On November 13, 2024, during a career development session Wu conducted with her camera off, Wu told Ms. Kowalski her work was not meeting expectations, that she was performing at an L4 level rather than

the L5 level for which she was hired, and that she needed to produce copy requiring zero revisions on the first draft. This standard was not applied to other copywriters, who received ordinary iterative feedback. Ms. Kowalski had received no negative performance feedback before her maternity leave.

. . .

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l. On December 11, 2024, Wu required Ms. Kowalski to compile her top accomplishments with supporting metrics by end of day on December 13, the day Wu was scheduled to be on vacation. That same day, Wu characterized Ms. Kowalski's ANZ Summer Sale 2025 campaign copy as "not quite working" despite its having cleared the standard review process. Wu then instituted mandatory weekly pre-review meetings applicable only to Ms. Kowalski's work, requiring an additional supervisory layer before the standard team review. No other copywriter on the team was subject to this requirement. The ANZ Summer Sale 2025 campaign that Wu criticized ultimately achieved a 5.13% click through rate and a 53% year-over-year engagement increase.

. . .

o. On January 29, 2025, during an in-person creative review meeting at the Hawthorne office, Ms. Kowalski experienced an audio feedback issue and asked whether she should leave the call to address it. Copywriter Kyle Garcia responded loudly: "Yes, please." Wu immediately burst out laughing, as did Garcia. The incident occurred one day after Ms. Kowalski had been rejected for a transfer to an Editorial Manager position. Creative Director Bob Partridge witnessed the exchange and said nothing.

Two weeks later, on February 12, 2025, during a team meeting, Wu posted a meme depicting Amy Poehler's character from the film "Mean Girls," specifically the scene in which Poehler plays an embarrassing, out-of-touch older mother, and directed it at Ms. Kowalski.

. . .

q. From March 17 through March 31, 2025, during and immediately following the HR investigation, Ms. Kowalski received virtually no work assignments for approximately two weeks. Projects within her ordinary scope, including the ANZ Mother's Day campaign initiated on March 24, 2025, were assigned to Cathy Lara instead. Wu controlled these assignment decisions. During March 25 and 26, 2025, the entire Ring creative team convened at the office for key collaboration sessions. Wu organized the meetings. Ms. Kowalski was the only team member not informed or invited.

. . .

s. Two days after the investigation closed, on April 5, 2025, Wu told Ms. Kowalski

during a one-on-one meeting that the reason she had received no work was the low quality of her writing. Eight days earlier, on March 28, 2025, Ms. Kowalski had received her Forte performance review, Amazon's company-wide evaluation tool, rating her as "Meets High Bar" with "Solid Strength" in Leadership Principles. The manager feedback section, signed by Wu, stated that Ms. Kowalski "shines in her bias for action and versatility," "never says no to new assignment," and "consistently meets deadlines and completes her assigned tasks." Peer feedback described her as having "delivered high quality work on time, often ahead of schedule" with "superb technical and communication skills." When pressed to identify specifically what work was low quality, Wu pointed only to Middle East and Africa campaigns that had required no copy changes and had performed well by objective metrics. There was no documented performance improvement plan, no prior written warnings about quality, and no objective basis for the sudden claim.

...

aa. The conduct causing this harm is not the ordinary friction of the employment relationship. Wu's actions were not limited to performance criticism, negative feedback, or standard supervisory conduct of the type courts have held insufficient to support an intentional infliction claim. The conduct at issue includes: posting in a team meeting a meme targeting Ms. Kowalski's age and status as a new mother as a basis for ridicule; publicly laughing at a colleague's suggestion that Ms. Kowalski should leave the workplace, in front of her peers and a senior director; publicly reprimanding Ms. Kowalski via Slack for work she had been explicitly told to disregard; signing a performance review evaluating Ms. Kowalski's work as meeting the high bar and praising her versatility, then eight days later characterizing the same work as low quality with no intervening performance events; and organizing team collaboration sessions from which Ms. Kowalski alone was excluded while she was receiving no work assignments at all. This conduct was (1) directed at Ms. Kowalski specifically because of her exercise of protected pregnancy leave rights, placing it squarely within the category of FEHA-violating discriminatory conduct that exceeds the normal risks of the employment relationship; (2) sustained deliberately over more than a year and escalated each time Ms. Kowalski complained; and (3) carried out by a supervisor who possessed authority over Ms. Kowalski's livelihood and who was aware of her worsening psychological condition throughout. Because the conduct arose from and constituted unlawful discrimination and retaliation in violation of FEHA, it is not subject to workers' compensation exclusivity. Because it goes materially beyond the discipline, criticism, and personnel management decisions that courts have held insufficient, it satisfies the extreme and outrageous standard required for an intentional infliction claim in the employment context.

(1AC,

¶¶ 12(h) – (l), (o), (q), (s), (aa).)

The foregoing allegations in essence

allege: personnel management and criticism by Wu and incidents which may have hurt Plaintiff's feelings, for instance by teasing. However, under the authorities cited above, this does not rise to extreme and outrageous conduct beyond the bounds of decency. Indeed, one cannot characterize being assigned less work—without an alleged reduction in pay—to be extreme and outrageous conduct.

The Court finds that Plaintiff's claim for IIED fails as a matter of law.

Defendants also argue that workers' compensation

is the exclusive remedy for the IIED cause of action. In light of the foregoing discussion, the Court does not address this argument.

The demurrer to the eighth cause of action

is SUSTAINED without leave to amend, unless Plaintiff can articulate a reasonable possibility of successful amendment.

Defendants are to answer the remaining

allegations of the First Amended Complaint within 10 days.